

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #
Date of filing:

-----X
M.O., an infant by his mother and natural
guardian, OLAN GAREEB and OLAN GAREEB,
individually,

Plaintiff designates New York
County as the place of trial

Plaintiffs,

Basis of the venue is:
Place of occurrence

-against-

SUMMONS

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MILLER – Shield No. 5745 and JOHN DOES – Police
Officers as yet unidentified,

Plaintiff resides in
2555 Boston Road
Bronx, New York 10467

Defendants.

-----X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendants' address:
THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:
RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER MILLER – Shield No.: 5745
122nd Precinct
2320 Hylan Boulevard
Staten Island, New York 10306

Dated: Brooklyn, New York
October 2, 2017

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
M.O., an infant by his mother and natural
guardian, OLAN GAREEB and OLAN GAREEB,
individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MILLER – Shield No. 5745 and JOHN DOES – Police
Officers as yet unidentified,

Defendants.

-----X
Plaintiffs by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF M.O., an infant by his mother and
natural guardian, OLAN GAREEB**

1. That at all times hereinafter mentioned, plaintiffs were and still are residents of the County, City and State of New York.
2. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a public authority duly organized and existing under and by virtue of the laws of the State of New York.
4. That prior hereto on February 13, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment thereof was duly served on the plaintiff's behalf on the Comptroller for the City of New York and the New York City Police

Department and that thereafter said Comptroller for the City of New York and the New York City Police Department refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on May 5, 2017, pursuant to the General Municipal Law, a Statutory 50-H hearing was held.

6. That on January 1, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER MILLER and JOHN DOES- Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on January 1, 2017, and at all times hereinafter mentioned and upon information and belief, the infant-plaintiff, M.O., an infant by his mother and natural guardian, OLAN GAREEB, was lawfully at or about the intersection of 43rd Street at or near its intersection with 6th and 7th Avenues, County, City and State of New York, he was approached by defendant, POLICE OFFICER MILLER and JOHN DOES- Police Officers as yet unidentified.

8. That on January 1, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER MILLER and JOHN DOES-Police Officers as yet unidentified, assaulted and battered the infant-plaintiff, M.O., at the abovementioned location.

9. That on January 1, 2017, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on January 1, 2017, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER MILLER and JOHN DOES – Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the infant-plaintiff, M.O., were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

11. That on January 1, 2017, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the infant-plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the infant-plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the infant-plaintiff, M.O., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF M.O., an infant by his mother and
natural guardian, OLAN GAREEB**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER MILLER. and JOHN DOES – Police

Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, M.O.

16. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER MILLER and JOHN DOES – Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the infant-plaintiff, M.O., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS
ON BEHALF OF M.O., an infant by his mother and
natural guardian, OLAN GAREEB**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MILLER and JOHN DOES – Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

20. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant-plaintiff, M.O.

21. That as a result of said intentional and negligent acts, the infant-plaintiff, M.O., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

22. By reason of the foregoing, the infant-plaintiff, M.O., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR FOURTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF M.O., an infant by his mother and
natural guardian, OLAN GAREEB**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MILLER and JOHN DOES – Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted and battered the infant-plaintiff, M.O., in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

25. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MILLER and JOHN DOES – Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the infant-plaintiff, M.O., of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

26. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

27. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

28. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MILLER and JOHN DOES – Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

29. That the defendant's actions were not privileged or immune.

30. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MILLER and JOHN DOES – Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

31. By the reason of the foregoing, the plaintiff, M.O., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN FIFTH CAUSE OF ACTION FOR PUNITIVE
DAMAGES ON BEHALF OF M.O., an infant by her mother and
natural guardian, OLAN GAREEB**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

34. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER MILLER and JOHN DOES – Police Officers as yet unidentified, herein-above alleged.

35. By the reason of the foregoing, the infant-plaintiff, M.O., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR LOSS OF SERVICES ON BEHALF OF OLAN GAREEB

36. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "34" inclusive with the same force and effect as if more fully set forth at length herein.

37. That at all times hereinafter mentioned, the plaintiff, OLAN GAREEB, was the mother and natural guardian of the infant-plaintiff, M.O., and as such plaintiff, OLAN GAREEB, was entitled to the society and services of the infant-plaintiff, M.O.

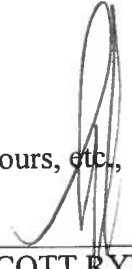
38. By reason of the afore-described negligence of the defendants, the plaintiff, OLAN GAREEB, was deprived of the society and services of the infant-plaintiff, M.O., and shall forever be deprived of said society and services.

39. As a result of the afore-described negligence, the plaintiff, OLAN GAREEB, expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for the infant-plaintiff, M.O..

WHEREFORE, infant-plaintiff, M.O., by his mother and natural guardian, OLAN GAREEB, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action; infant-plaintiff, M.O., by his mother and natural guardian, OLAN GAREEB, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action; infant-plaintiff, M.O., by his mother and natural guardian, OLAN GAREEB, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action; infant-plaintiff, M.O., an infant by his mother and natural guardian, OLAN GAREEB, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action; infant-plaintiff, M.O., by his mother and natural guardian, OLAN GAREEB, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action; plaintiff, OLAN GAREEB, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
October 2, 2017

Yours, etc.,



SCOTT RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020

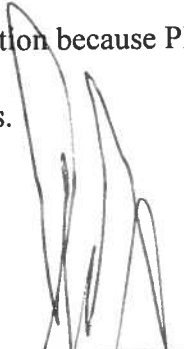
ATTORNEY'S VERIFICATION

SCOTT RYNECKI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, attorneys of record for Plaintiff, in the action within. I have read the annexed **COMPLAINT**, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York
October 3, 2017



Scott Rynecki

RUBENSTEIN & RYNECKI ESQS.

NOTICE OF ENTRY

PLEASE take notice that the within is a (certified) true copy of a duly entered in the office of the clerk of the within named court on

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on

at

M.

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

Index No.

Year

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

X

M.O., an infant by his mother and natural guardian, OLAN GAREEB and OLAN GAREEB, individually,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MILLER – Shield No. 5745 and JOHN DOES – Police Officers as yet unidentified,

Defendants.
Signature (Rule 130-1.1-a)

X

SUMMONS AND VERIFIED COMPLAINT

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address, Telephone
16 COURT ST.
BROOKLYN, N.Y. 11241
(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.
Dated

.....

Attorney(s) for